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TERMED

U.S. District Court - District of Colorado
District of Colorado (Denver)
CIVIL DOCKET FOR CASE #: 1:08-cv-00996-RPM

Cruz et al v. Cole et al
Assigned to: Judge Richard P. Matsch
Cause: 28:1332 Diversity-Medical Malpractice

Date Filed: 05/13/2008
Date Terminated: 03/18/2010
Jury Demand: Both
Nature of Suit: 362 Personal Inj. Med.
Malpractice
Jurisdiction: Diversity

Plaintiff**Kathy D. Cruz**

represented by **George E. McLaughlin**
McLaughlin Law Firm, P.C.
1890 Gaylord Street
Denver, CO 80206
720-420-9800
Fax: 720-677-7707
Email: GEM@McLLF.com
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Plaintiff**Ramon L. Cruz, Jr.**

represented by **George E. McLaughlin**
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

V.

Defendant**Christopher R. Cole**
M.D.

represented by **Deanne C. McClung**
Hall & Evans LLC
1001 Seventeenth Street
Suite 300
Denver, CO 80202
303-628-3367
Fax: 303-628-3368
Email: mcclungd@hallevans.com

Defendant**Colorado Springs Cardiologists, P.C.**
TERMINATED: 11/26/2008

represented by **Deanne C. McClung**
(See above for address)
ATTORNEY TO BE NOTICED

Date Filed	#	Docket Text
05/13/2008	<u>1</u>	COMPLAINT for Damages and Jury Demand against Christopher R. Cole, Colorado Springs Cardiologists, P.C. (Filing fee \$ 350, Receipt Number COX009880) Summons not issued, filed by Kathy D. Cruz, Ramon L. Cruz, Jr. (Attachments: # <u>1</u> Civil Cover Sheet, # <u>2</u> Receipt)(llk,) (Entered: 05/14/2008)
05/30/2008	<u>2</u>	<i>Defendants</i> ANSWER to <u>1</u> Complaint, by Christopher R. Cole, Colorado Springs Cardiologists, P.C..(Potestio, Deanne) (Entered: 05/30/2008)
06/02/2008	<u>3</u>	ORDER setting Scheduling Conference for 7/15/2008 11:30 AM in Conference Room before Judge Richard P. Matsch. Signed by Judge Richard P. Matsch on 06/02/08. (jjh,) (Entered: 06/02/2008)
06/09/2008	<u>4</u>	MOTION to <i>Reset Scheduling Conference</i> by Plaintiffs Kathy D. Cruz, Ramon L. Cruz, Jr. (McLaughlin, George) (Entered: 06/09/2008)
06/09/2008	<u>5</u>	Minute ORDER granting <u>4</u> Motion to Reset Scheduling Conference. The conference is rescheduled for 07/07/08, at 2:00 p.m. in the Conference Room, Second Floor, the Byron White United States Courthouse, 1823 Stout Street, Denver, Colorado. The deadline for submitting the proposed scheduling order directly to chambers is 07/02/08, at 4:00 p.m. by Judge Richard P. Matsch on 06/09/08.(jjh,) (Entered: 06/09/2008)
06/09/2008	<u>6</u>	Utility Setting/Resetting Deadlines/Hearings: Scheduling Conference set for 7/7/2008 02:00 PM in Conference Room before Judge Richard P. Matsch pursuant to the Minute Order of 06/09/08. Text only entry - no document attached. (jjh,) (Entered: 06/09/2008)
07/07/2008	<u>7</u>	Minute Entry - Courtroom Minutes for Scheduling Conference held on 7/7/2008 before Judge Richard P. Matsch. ORDERED: Scheduling Order approved. (Court Reporter FTR - K. Terasaki) (rpmcd) (Entered: 07/07/2008)
07/07/2008	<u>8</u>	SCHEDULING ORDER: Discovery due by 5/30/2009. Dispositive Motions due by 6/30/2009. Signed by Judge Richard P. Matsch on 7/7/2008. (rpmcd) (Entered: 07/07/2008)
07/11/2008	<u>9</u>	CERTIFICATE of Review by Plaintiffs Kathy D. Cruz, Ramon L. Cruz, Jr. (McLaughlin, George) (Entered: 07/11/2008)
11/14/2008	<u>10</u>	MOTION to Compel by Defendants Christopher R. Cole, Colorado Springs Cardiologists, P.C.. (Attachments: # <u>1</u> Exhibit A, # <u>2</u> Exhibit B, # <u>3</u> Exhibit C, # <u>4</u> Exhibit D, # <u>5</u> Exhibit E, # <u>6</u> Exhibit F, # <u>7</u> Exhibit G, # <u>8</u> Exhibit H)(Potestio, Deanne) (Entered: 11/14/2008)
11/20/2008	<u>11</u>	MOTION to Withdraw Document re <u>10</u> MOTION to Compel by Defendants Christopher R. Cole, Colorado Springs Cardiologists, P.C.. (Potestio, Deanne) (Entered: 11/20/2008)
11/24/2008	<u>12</u>	STIPULATION of Dismissal of Party <i>Colorado Springs Cardiologists, P.C.</i> by Defendants Christopher R. Cole, Colorado Springs Cardiologists, P.C.. (Potestio, Deanne) (Entered: 11/24/2008)
11/26/2008	<u>13</u>	ORDER Dismissing Defendant Colorado Springs Cardiologists, P.C. Each party to pay their respective costs and fees. Signed by Judge Richard P. Matsch on 11/26/08. (jjh,) (Entered: 11/26/2008)
07/10/2009	<u>14</u>	ORDER Setting Pretrial Conference for 9/11/2009 at 03:00 PM in Conference Room and proposed Pretrial Order due by 4:00 p.m. 9/3/2009. Signed by Judge Richard P. Matsch on 7/10/2009. (rpmcd) (Entered: 07/10/2009)

07/10/2009	15	MOTION to Compel <i>Sameer Oza, M.D. to Express Opinions on the Standard of Care</i> by Plaintiffs Kathy D. Cruz, Ramon L. Cruz, Jr. (Attachments: # 1 Exhibit A to Motion to Compel)(McLaughlin, George) (Entered: 07/10/2009)
07/27/2009	16	NOTICE of Attorney Change of Name by Defendant Christopher R. Cole (Potestio, Deanne) (Entered: 07/27/2009)
07/30/2009	17	RESPONSE to 15 MOTION to Compel <i>Sameer Oza, M.D. to Express Opinions on the Standard of Care</i> filed by Defendant Christopher R. Cole. (Attachments: # 1 Exhibit A-B) (Potestio, Deanne) (Entered: 07/30/2009)
08/12/2009	18	REPLY to Response to 15 MOTION to Compel <i>Sameer Oza, M.D. to Express Opinions on the Standard of Care</i> filed by Plaintiffs Kathy D. Cruz, Ramon L. Cruz, Jr. (McLaughlin, George) (Entered: 08/12/2009)
08/13/2009	19	ORDER denying 15 Motion to Compel. Signed by Judge Richard P. Matsch on 8/13/2009. (rpmcd) (Entered: 08/13/2009)
08/14/2009	20	RESPONSE to 15 MOTION to Compel <i>Sameer Oza, M.D. to Express Opinions on the Standard of Care (Supplemental)</i> filed by Defendant Christopher R. Cole. (Attachments: # 1 Affidavit of Sameer Oza, M.D.)(McClung, Deanne) (Entered: 08/14/2009)
09/11/2009	21	Minute Entry - Courtroom Minutes for Pretrial Conference held before Judge Richard P. Matsch on 9/11/2009. Revised pretrial order due by 2/12/2010. Jury trial set for 3/15/2010 at 08:30 AM in Courtroom A before Judge Matsch. (FTR - Kathy Terasaki) (lbush) (Entered: 09/11/2009)
09/16/2009	22	ORDER Setting Jury Trial for 3/15/2010 at 08:30 AM in Courtroom A. Signed by Judge Richard P. Matsch on 9/16/2009. (rpmcd) (Entered: 09/16/2009)
12/23/2009	23	MOTION in Limine <i>Regarding Margo Mullally Swail</i> by Plaintiffs Kathy D. Cruz, Ramon L. Cruz, Jr. (McLaughlin, George) (Entered: 12/23/2009)
12/23/2009	24	BRIEF in Support of 23 MOTION in Limine <i>Regarding Margo Mullally Swail</i> filed by Plaintiffs Kathy D. Cruz, Ramon L. Cruz, Jr. (McLaughlin, George) (Entered: 12/23/2009)
01/05/2010	25	RESPONSE to 23 MOTION in Limine <i>Regarding Margo Mullally Swail</i> filed by Defendant Christopher R. Cole. (Attachments: # 1 Exhibit A)(McClung, Deanne) (Entered: 01/05/2010)
01/19/2010	26	REPLY to Response to 23 MOTION in Limine <i>Regarding Margo Mullally Swail</i> filed by Plaintiffs Kathy D. Cruz, Ramon L. Cruz, Jr. (McLaughlin, George) (Entered: 01/19/2010)
02/09/2010	27	MOTION for Order to (for) <i>Sequestration Order</i> by Defendant Christopher R. Cole. (McClung, Deanne) (Entered: 02/09/2010)
02/12/2010	28	Revised Final PRETRIAL ORDER. Discovery completed. Signed by Judge Richard P. Matsch on 2/12/2010. (rpmcd) (Entered: 02/12/2010)
02/17/2010	29	MINUTE ORDER Scheduling Trial Preparation Conference for 3/11/2010 at 10:00 AM in Conference Room, by Judge Richard P. Matsch on 2/17/2010. (rpmcd) (Entered: 02/17/2010)
02/19/2010	30	MOTION in Limine by Plaintiffs Kathy D. Cruz, Ramon L. Cruz, Jr. (Attachments: # 1 Exhibit Exhibit A Dr. Wilkoff expert report, # 2 Exhibit Exhibit B Dr. Day expert report, # 3 Exhibit Exhibit C Wilkoff Depositions pages, # 4 Exhibit Exhibit D - Dr. Day Deposition pages)(McLaughlin, George) (Entered: 02/19/2010)
02/24/2010	31	RESPONSE to 30 MOTION in Limine filed by Defendant Christopher R. Cole. (Attachments: # 1 Exhibit A, # 2 Exhibit B)(McClung, Deanne) (Entered: 02/24/2010)

03/01/2010	32	OBJECTIONS to <i>Plaintiffs' Witnesses, Exhibits and Depositions</i> by Defendant Christopher R. Cole. (McClung, Deanne) (Entered: 03/01/2010)
03/01/2010	33	NOTICE to Court of <i>Videotaped Deposition Testimony</i> by Defendant Christopher R. Cole (McClung, Deanne) (Entered: 03/01/2010)
03/01/2010	34	OBJECTIONS to <i>Defendant's Witnesses, Exhibits and Depositions</i> by Plaintiffs Kathy D. Cruz, Ramon L. Cruz, Jr. (McLaughlin, George) (Entered: 03/01/2010)
03/05/2010	35	RESPONSE to 27 MOTION for Order to <i>(for) Sequestration Order</i> filed by Plaintiffs Kathy D. Cruz, Ramon L. Cruz, Jr. (McLaughlin, George) (Entered: 03/05/2010)
03/05/2010	36	REPLY to Response to 30 MOTION in Limine filed by Plaintiffs Kathy D. Cruz, Ramon L. Cruz, Jr. (Attachments: # 1 Exhibit A to Plaintiffs' Reply)(McLaughlin, George) (Entered: 03/05/2010)
03/08/2010	37	MOTION in Limine <i>Regarding Admissibility of Medical Expense Evidence</i> by Plaintiffs Kathy D. Cruz, Ramon L. Cruz, Jr. (McLaughlin, George) (Entered: 03/08/2010)
03/08/2010	38	BRIEF in Support of 37 MOTION in Limine <i>Regarding Admissibility of Medical Expense Evidence</i> filed by Plaintiffs Kathy D. Cruz, Ramon L. Cruz, Jr. (Attachments: # 1 Exhibit 1, # 2 Exhibit 2, # 3 Exhibit 3, # 4 Exhibit 4)(McLaughlin, George) (Entered: 03/08/2010)
03/09/2010	39	REPLY to Response to 27 MOTION for Order to <i>(for) Sequestration Order</i> filed by Defendant Christopher R. Cole. (Attachments: # 1 Exhibit A)(McClung, Deanne) (Entered: 03/09/2010)
03/09/2010	40	RESPONSE to 37 MOTION in Limine <i>Regarding Admissibility of Medical Expense Evidence</i> filed by Defendant Christopher R. Cole. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D)(McClung, Deanne) (Entered: 03/09/2010)
03/10/2010	41	MOTION for Order to <i>Prevent Plaintiffs from calling Defense Expert Witnesses in their Case-in-Chief</i> by Defendant Christopher R. Cole. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Special Assignment Form C)(McClung, Deanne) (Entered: 03/10/2010)
03/11/2010	42	RESPONSE to 41 MOTION for Order to <i>Prevent Plaintiffs from calling Defense Expert Witnesses in their Case-in-Chief</i> filed by Plaintiffs Kathy D. Cruz, Ramon L. Cruz, Jr. (Attachments: # 1 Exhibit A to Response)(McLaughlin, George) (Entered: 03/11/2010)
03/11/2010	43	Minute Entry - Courtroom Minutes for Trial Preparation Conference held on 3/11/2010 before Judge Richard P. Matsch. ORDERED: Defendant Christopher Cole, M.D.'s Motion Pursuant to F.R.E. 611 to Prevent Plaintiffs from Calling Defense Expert Witnesses In Their Case-in-Chief, filed March 10, 2010 41 , is granted. Defendant Christopher Cole, M.D.'s Motion for Sequestration Order, filed February 9, 2010 27 , is denied as to expert witness rebuttal testimony. Plaintiffs' Motion in Limine Regarding Admissibility of Medical Expense Evidence, filed March 8, 2010 37 , is granted. The amounts billed are reasonable and necessary expenses and the amounts paid are not admissible. Plaintiffs' Motion in Limine, filed February 19, 2010 30 , is terminated as a ruling on the permitted testimony will be made during the course of the trial. Plaintiffs' Motion in Limine Regarding Margo Mullally Swail, filed December 23, 2009 23 is terminated and testimony is limited to what she observed. (Reporter FTR - K. Terasaki) (rpmcd) (Entered: 03/11/2010)
03/15/2010	44	Witness List y Plaintiffs Kathy D. Cruz, Ramon L. Cruz, Jr. (rpmcd) (Entered: 03/16/2010)
03/15/2010	45	Witness List (Designation and Order of Proof) by Defendant Christopher R. Cole. (rpmcd) (Entered: 03/16/2010)

03/15/2010	46	Minute Entry - Courtroom Minutes for Jury Trial held on 3/15/2010 before Judge Richard P. Matsch. (Attachments: # 1 Redacted Strike Sheet) (Court Reporter FTR - K. Terasaki) (rpmcd) (Entered: 03/16/2010)
03/16/2010	47	Minute Entry - Courtroom Minutes for Jury Trial held on 3/16/2010 before Judge Richard P. Matsch. ORDERED: Defendant's Motion for Judgment as a Matter of Law pursuant to Rule 50, is denied. (Reporter FTR - K. Terasaki) (rpmcd) (Entered: 03/17/2010)
03/17/2010	48	Minute Entry - Courtroom Minutes for Jury Trial held on 3/17/2010 before Judge Richard P. Matsch. ORDERED: Defendant's renewed Rule 50 motion is denied. Plaintiffs' Motion for Judgment as a Matter of Law, pursuant to Rule 50, with respect to the issue of comparative negligence is denied. (Attachments: # 1 Tendered and Refused Instructions, # 2 Clerk's Record Plaintiffs' Exhibit List, # 3 Clerk's Record Defendant's Exhibit List, # 4 Jury's Index for Plaintiffs' Exhibits, # 5 Jury's Index for Defendant's Exhibits) (Reporter FTR - K. Terasaki)(rpmcd) (Entered: 03/18/2010)
03/18/2010	49	Minute Entry - Courtroom Minutes for Jury Trial completed on 3/18/2010 held before Judge Richard P. Matsch. ORDERED: Jury finds pursuant to its March 18, 2010 Verdict Form. (Verdict Form retained pursuant to General Order 2007-3, JURY VERDICT. Court signs Stipulation and Order Regarding Custody of Exhibits and Depositions. Judgment will enter for defendant pursuant to the jury's verdict. Exhibits and depositions returned to counsel. (Attachments: # 1 Redacted Verdict Form) (Court Reporter FTR - K. Terasaki) (rpmcd) (Entered: 03/18/2010)
03/18/2010	50	Stipulation and ORDER Regarding Custody Of Exhibits and Depositions, signed by Judge Richard P. Matsch on 3/18/2010. (rpmcd) (Entered: 03/18/2010)
03/18/2010	51	JUDGMENT by Clerk. Ordered that judgment is entered in favor Christopher Cole, M.D. and against plaintiffs Kathy D. Cruz and Ramon L. Cruz. ORDERED that defendant Christopher Cole, M.D. shall have his costs by the filing of a Bill of Costs with the Clerk of this Court within fourteen days of the entry. of judgment. ORDERED that the Complaint and this civil action are dismissed with prejudice by Deputy Clerk on 03/18/10. (jjh,) (Entered: 03/18/2010)
03/31/2010	52	Proposed Bill of Costs by Defendant Christopher R. Cole. (Attachments: # 1 Exhibit) (McClung, Deanne) (Entered: 03/31/2010)
04/06/2010	53	CERTIFICATE OF COMPLIANCE Pursuant to D.C.COLO.LCivR 54.1 re 52 Proposed Bill of Costs by Defendant Christopher R. Cole. (McClung, Deanne) (Entered: 04/06/2010)
04/08/2010	54	Costs Taxed in amount of \$ 9,496.29 against Plaintiff. (jjh,) (Entered: 04/08/2010)
04/14/2010	55	MOTION for New Trial by Plaintiffs Kathy D. Cruz, Ramon L. Cruz, Jr. (McLaughlin, George) (Entered: 04/14/2010)
04/14/2010	56	BRIEF in Support of 55 MOTION for New Trial filed by Plaintiffs Kathy D. Cruz, Ramon L. Cruz, Jr. (Attachments: # 1 Exhibit 1)(McLaughlin, George) (Entered: 04/14/2010)
05/04/2010	57	RESPONSE to 55 MOTION for New Trial filed by Defendant Christopher R. Cole. (McClung, Deanne) (Entered: 05/04/2010)
05/17/2010	58	ORDER denying 55 Motion for New Trial, signed by Judge Richard P. Matsch on 5/17/2010.(rpmcd) (Entered: 05/17/2010)

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